

Kuldeep Kumar Sonkar v. State of U.P. — recovery citation relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · WRIT - C No. - 14302 of 2022 · **Writ disposed; clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

Without examining merits, a writ against a recovery citation for a disputed electricity bill is disposed of with liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, and a short stay of coercive action.

FACTUAL SUMMARY

The petitioner challenged a 25 March 2022 recovery citation for an electricity bill of Rs 2,00,035. He sought a corrected bill in installments after adjusting an OTS deposit of 4 January 2021, and a direction to decide his 26 March 2022 representation (reminder 13 April 2022) with recovery kept in abeyance. Licensee counsel stated that an objection to the demand could be filed and would be decided in accordance with law within a stipulated period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-clause-6.5-objection

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery citation for a disputed electricity bill is disposed of by granting liberty to the consumer to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, within four weeks, to be decided by the designated licensee officer in accordance with law within the next four weeks after hearing; coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery citation was not decided on merits; the consumer was relegated to a paragraph 6.5 objection before the licensee officer. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The statutory forum for the disputed electricity bill and recovery citation is an objection under paragraph 6.5 of the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION DATED 25.03.2022

Disposed without expressing any opinion on merits. ¶ 1